

TRUSTS

IN RE: BETTY RUTHERFORD TRUST

Case Number: 25PB-0032907

This matter is on calendar for hearing on the Petition for Confirmation of Assets. The matter has been properly noticed with proof of service on file. No objections have been raised. The Petition fails to establish that the Trustor intended to hold the subject property in Trust. The basis for the Petition is that, because the Trustor executed a pour-over will, she had a present intent to hold the subject property in the name of the Trust. A pour-over will indicates an intent that any property not held in Trust at time of death be devised to the Trust after death. A pour-over will does not support a present intent to hold the subject property in the name of the Trust during the decedent's lifetime. No other evidence was provided to show the decedent had a present intent to hold the subject property in Trust while she was living. The Petition is **DENIED** without prejudice. The clerk is instructed to close the file. **No appearance is necessary on today's calendar.**

IN RE: THE KEITH ALAN DIBBLE TRUST

Case Number: 25PB-0032844

This matter is on calendar for further proceedings on a Petition for Order Directing Return of Possession of Real Property to Trust. The matter has been properly noticed, with proof of service on file. No objections have been raised. The Paperwork appears to be in order. The Petition is **GRANTED**. A proposed order was submitted and will be executed by the Court. The clerk is directed to close the file upon processing of the order. **No appearance is necessary on today's calendar.**

IN RE THE SHADWELL 1997 TRUST

Case Number: CVPB11-0026890

This matter is on calendar for hearing on a Petition for Approval of Thirteenth and Final Account and Report of Trustee. The matter has been properly noticed, with proof of service on file. No objections have been raised. The accounting contains the following defects:

1. The accounting is incomplete as it purports to cover the period beginning July 18, 2023, and ending August 31, 2024. No summary of account is attached for the period of May 13, 2024, to August 31, 2024.
2. There is an error in the calculation of Total Charges for the period of May 13, 2024, through August 31, 2024. The Total Charges add up to \$14,588.40, not \$14,488.40.
3. The Court notes that the property on hand as of May 12, 2024, was cash in the amount of \$1,146.86 and non-cash assets valued at \$204,735.33. As of May 13, 2024, one day later, the accounting indicates that property on hand only consisted of cash in the amount of \$2,614.14. Nothing in the accounting explains what happened to over \$200,000.00 in non-cash assets. The lodged account statements from Morgan Stanley indicate that the assets may have been omitted from the accounting in error.

The matter is continued to **Monday, July 21, 2025, at 2:30pm in Department 44** for further proceedings on the Petition. An Amended Petition must be filed curing the defects noted above. Petitioner shall also timely file and serve a new Notice of Hearing for the continued hearing date. **No appearance is necessary on today's calendar.**